

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

GERALDO MANAN,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. MATTHEW GIANNAELLA (Shield #27163),**

Defendant.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 4, 2024

MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

POLICE OFFICER MATTHEW GIANNELLA (SHEILD#27163)

40th PRECINCT

257 Alexander Avenue

Bronx, NY 10454

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
GERALDO MANAN

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
P.O. MATTHEW GIANNAELLA (Shield #27163)
Defendant.**

=====X

Plaintiff GERALDO MANAN, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by
virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter the
"NYPD") officers, including Defendant Police Officer Matthew Giannella
(hereinafter "GIANNELLA") mentioned herein were, at the time of the
occurrence, police officers of Defendant CITY, and at all times herein were acting
in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Geraldo Manan (hereinafter "MANAN") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 4:00pm on June 8, 2023, in and around 153rd Street and Bergen Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. In the afternoon of June 8, 2023 at approximately 4:00pm, MANAN was walking in Bronx County in the vicinity of E. 153rd Street and Bergen Avenue.

10. Despite not engaging in any criminal activity whatsoever, MANAN was rushed by numerous NYPD officers, including GIANNELLA and detained in the street.
11. MANAN was handcuffed, placed in a police vehicle and taken to the 40th Precinct.
12. Once at the precinct, MANAN was assaulted by numerous NYPD officers, including GIANNELLA.
13. The above referenced assault led to numerous lacerations, bruises and abrasions on MANAN's face and body.
14. MANAN was eventually brought to central booking where he was informed that he was being charged with possession of a controlled substance with intent to sell.
15. MANAN eventually saw a judge and was ROR'd on the aforementioned felony charges.
16. After being ROR'd MANAN went to Lincoln Hospital to receive medical treatment to the injuries he suffered at the hands of the NYPD officers in the 40th Precinct.
17. MANAN went back and forth to court on at least two occasions until his criminal case was dismissed on.

FIRST CAUSE OF ACTION: FALSE ARREST

18. Paragraphs 8-17 are incorporated by reference as fully set forth herein
19. GIANNELLA arrested MANAN intentionally, and MANAN at all times was aware he was being arrested and did not consent to being arrested.

20. As a result of being arrested by GIANNELLA and the NYPD officers, MANAN suffered physical injuries, including lacerations to his face causing profuse bleeding. MANAN also suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

21. Paragraphs 1-20 are incorporated by reference as though fully set forth herein.

22. The officers who arrested the MANAN, including GIANNELLA, as described in paragraphs 9-17, intended to confine him. MANAN was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. In arresting MANAN as described in paragraphs 9-17, the arresting NYPD officers, including GIANNELLA were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

25. In arresting MANAN as described in paragraphs 9-17, the arresting NYPD officers, including GIANNELLA sought either a detriment to MANAN or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.

26. As a result of defendants' abuse of process, MANAN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. In arresting MANAN as described in paragraphs 9-17, the arresting NYPD officers acted with malice and without probable cause.

29. As a result of being maliciously prosecuted by the arresting NYPD officers, MANAN sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. Immediately before the arresting NYPD officers, including GIANNELLA arrested MANAN as described in paragraphs 9-17, the officers intentionally placed MANAN in apprehension of imminent harmful or offensive contact without MANAN's consent.

SIXTH CAUSE OF ACTION: BATTERY

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. The NYPD officers who arrested the MANAN as described in paragraphs 9-17, wrongfully touched, grabbed, handcuffed and seized the MANAN in an excessive

manner, subjecting the MANAN to harmful and offensive bodily contact. The arresting officers lacked legal cause to grab, handcuff, seize or touch the MANAN, nor did the MANAN consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.
35. Upon information and belief, the officers who illegally arrested and battered MANAN were at all times relevant duly appointed and acting officers of the City of New York Police Department.
36. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
37. MANAN is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
38. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
39. On or about June 8, 2023, as described in paragraphs 9-17, armed officers of the NYPD, including GIANNELLA, while effectuating the seizure of the MANAN, searched, seized, assaulted, and battered MANAN, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the

person of MANAN during the arrest process in an unlawful and excessive manner. MANAN was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

40. The above actions of the arresting officers caused the MANAN to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

41. The arresting officers, including GIANNELLA subjected MANAN to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

42. The direct and proximate result of the officers' acts are that the MANAN has suffered severe and permanent physical and psychological injuries. MANAN was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
45. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.
47. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
48. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.
49. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

(b) Force cannot be used against an individual who does not physically resist arrest.

(c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

50. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

51. Paragraphs 1-50 are incorporated by reference as though fully set forth herein.

52. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff GERALDO MANAN demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

September 4, 2024

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

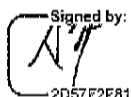
That deponent is the plaintiff in the within action; that deponent has read the foregoing

VERIFIED SUMMONS AND COMPLAINT and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
September 5, 2024

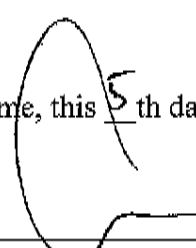
Signed by:



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GERALDO MANAN

Subscribed and sworn to before me, this 5th day of September 2024



Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 5/26/27

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COUNTY OF THE BRONX**

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Plaintiff,

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Defendant.

SUMMONS & COMPLAINT

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**TO: CORPORATION COUNSEL OF THE
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